COURT OF APPEAL FOR ONTARIO

CITATION: Crosslinx Transit Solutions General Partnership v. Ontario (Economic Development, Employment and Infrastructure), 2022 ONCA 250
DATE: 20220324
DOCKET: C69486

Rouleau, van Rensburg and Roberts JJ.A.

BETWEEN

Crosslinx Transit Solutions General Partnership and
Crosslinx Transit Solutions Constructors

Applicants
(Respondents)

and

Ontario Infrastructure and Lands Corporation,
as representative of the Minister of Economic Development, Employment and Infrastructure, as representative of Her Majesty the Queen in Right of Ontario
and Metrolinx

Respondents
(Appellants)

Sharon Vogel, Peter Wardle, Jesse Gardner and Cheryl Labiris, for the appellants

Matthew Sammon, Andrea Wheeler and Jacqueline Chan, for the respondents

Heard: January 6, 2022 by video conference

On appeal from the judgment of Justice Markus Koehnen of the Superior Court of Justice dated May 17, 2021, with reasons reported at 2021 ONSC 3567.

COSTS ENDORSEMENT

[1] On March 7, 2022, we allowed the appeal, set aside the judgment and costs order of the application judge, and remitted the application for a rehearing, with costs to the appellants in the agreed upon all-inclusive amount of $60,000.

[2] The parties were unable to agree on the disposition of the application costs. We have received and reviewed their respective written submissions.

[3] We agree with the respondents that the fairest disposition is to leave the issue of the application costs to the trier of fact on the rehearing of the application, including but not limited to a rehearing before a judge of the Superior Court and/or in an arbitral process.

[4] Order to go accordingly.

"Paul Rouleau J.A."
"K. van Rensburg J.A."
"L.B. Roberts J.A."